

1 ENGROSSED HOUSE
2 BILL NO. 4108

By: Ford of the House

3 and

4 Rader of the Senate
5

6 An Act relating to airports; amending 21 O.S. 2021,
7 Section 1792, as amended by Section 699, Chapter 486,
8 O.S.L. 2025 (21 O.S. Supp. 2025, Section 1792), which
9 relates to trespassing on property containing
critical infrastructure; expanding scope of crime to
include airports; and providing an effective date.
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12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 21 O.S. 2021, Section 1792, as
14 amended by Section 699, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
15 2025, Section 1792), is amended to read as follows:

16 Section 1792. A. Any person who shall willfully trespass or
17 enter property containing a critical infrastructure facility without
18 permission by the owner of the property or lawful occupant thereof
19 shall, upon conviction, be guilty of a misdemeanor punishable by a
20 fine of not less than One Thousand Dollars (\$1,000.00), or by
21 imprisonment in the county jail for a term of six (6) months, or by
22 both such fine and imprisonment. If it is determined the intent of
23 the trespasser is to willfully damage, destroy, vandalize, deface,
24 tamper with equipment, or impede or inhibit operations of the

1 facility, the person shall, upon conviction, be guilty of a Class D3
2 felony offense punishable by a fine of not less than Ten Thousand
3 Dollars (\$10,000.00), or by imprisonment as provided for in
4 subsections B through F of Section 20P of this title, or by both
5 such fine and imprisonment.

6 B. Any person who shall willfully damage, destroy, vandalize,
7 deface or tamper with equipment in a critical infrastructure
8 facility shall, upon conviction, be guilty of a Class D3 felony
9 offense punishable by a fine of One Hundred Thousand Dollars
10 (\$100,000.00), or by imprisonment in the custody of the Department
11 of Corrections for a term of not more than ten (10) years, or by
12 both such fine and imprisonment.

13 C. If an organization is found to be a conspirator with persons
14 who are found to have committed any of the crimes described in
15 subsection A or B of this section, the conspiring organization shall
16 be punished by a fine that is ten times the amount of said fine
17 authorized by the appropriate provision of this section.

18 D. As used in this section, "critical infrastructure facility"
19 means:

20 1. One of the following, if completely enclosed by a fence or
21 other physical barrier that is obviously designed to exclude
22 intruders, or if clearly marked with a sign or signs that are posted
23 on the property that are reasonably likely to come to the attention
24

1 of intruders and indicate that entry is forbidden without site
2 authorization:

- 3 a. a petroleum or alumina refinery,
- 4 b. an electrical power generating facility, substation,
- 5 switching station, electrical control center or
- 6 electric power lines and associated equipment
- 7 infrastructure,
- 8 c. a chemical, polymer or rubber manufacturing facility,
- 9 d. a water intake structure, water treatment facility,
- 10 wastewater treatment plant or pump station,
- 11 e. a natural gas compressor station,
- 12 f. a liquid natural gas terminal or storage facility,
- 13 g. a telecommunications central switching office,
- 14 h. wireless telecommunications infrastructure, including
- 15 cell towers, telephone poles and lines, including
- 16 fiber optic lines,
- 17 i. a port, railroad switching yard, railroad tracks,
- 18 trucking terminal or other freight transportation
- 19 facility,
- 20 j. a gas processing plant, including a plant used in the
- 21 processing, treatment or fractionation of natural gas
- 22 or natural gas liquids,
- 23 k. a transmission facility used by a federally licensed
- 24 radio or television station,

1. a steelmaking facility that uses an electric arc furnace to make steel,
- m. a facility identified and regulated by the United States Department of Homeland Security Chemical Facility Anti-Terrorism Standards (CFATS) program,
- n. a dam that is regulated by the state or federal government,
- o. a natural gas distribution utility facility including, but not limited to, pipeline interconnections, a city gate or town border station, metering station, aboveground piping, a regulator station and a natural gas storage facility, ~~or~~
- p. a crude oil or refined products storage and distribution facility including, but not limited to, valve sites, pipeline interconnections, pump station, metering station, below or aboveground pipeline or piping and truck loading or offloading facility, or
- q. the operational area of an airport including runways, taxiways, ramps, apron areas, aircraft parking and storage areas, fuel storage areas, maintenances areas, and any other area of an airport used or intended to be used for landing, takeoff, or surface maneuvering of aircraft; or

2. Any aboveground portion of an oil, gas, hazardous liquid or chemical pipeline, tank, railroad facility or other storage facility that is enclosed by a fence, other physical barrier or is clearly marked with signs prohibiting trespassing, that are obviously designed to exclude intruders.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 11th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the ____ day of _____, 2026.

Presiding Officer of the Senate